

24STCV15620 24STCV15620

County: los-angeles

Division: Civil Law and Motion

Department: 515

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C515%2C09%2F15%2F2026

Source SHA-256: 17eec2a49ff4ea2280d07fcc440502492de7cc2ac3573ed0fbf45be9a2f786fa

Case Number: 24STCV15620 Hearing Date: September 15, 2026 Dept: 515

Plaintiff's Motion to Compel Further Responses and Documents
to RFP, Set One, Nos. 20, 21, and 22

Plaintiff's Motion to Compel Further Responses to Special
Interrogatories, Set One, Nos. 16 and 17

Plaintiff Maria Delia Davila Pinedo, by and through her
successor-in-interest Jenesis Mejia ("Plaintiff") brings this elder abuse case
against Defendant CHA Hollywood Medical Center, L.P. dba Hollywood Presbyterian
Medical Center D/P SNF ("Defendant") alleging claims for: (1) elder abuse/neglect
with corporate ratification, pursuant to Welfare and Institutions Code § 15600,
et seq.; (2) negligence, (3) violation of residents' rights, pursuant to Health
and Safety Code § 1430(b); and (4) wrongful death. Plaintiff's complaint
alleges that Ms. Davila Pinedo received inadequate care while she resided at
Defendant's skilled nursing facility ("The Chalet"), and that Ms. Davila Pinedo
developed injuries including a stage 4 pressure injury on her sacrum. Plaintiff
alleges that Ms. Davila Pinedo's condition deteriorated, she could not recover
from her injuries, and she died.

Plaintiff seeks further responses to RFP Nos. 20-22 and
Special Interrogatories Nos. 16-17. The parties held an IDC with the Court
regarding these requests and ultimately could not reach an agreement, and thus
Plaintiff filed the two motion to compel further.

Requests for Production

RFP No. 20 seeks "all written or recorded statements attributable
to any of YOUR staff concerning PLAINTIFF and the events giving rise to this

lawsuit.”

RFP No. 21 seeks “all incident reports that were prepared by YOU and/or YOUR agents in connection with PLAINTIFF’S ADMISSION at YOUR FACILITY.”

RFP No. 22 seeks “all DOCUMENTS regarding investigative actions regarding the care and treatment of PLAINTIFF during ADMISSION at YOUR FACILITY.”

Defendant objected to the requests on the following grounds: relevancy, vague, ambiguous, burdensome, harassing, and calls for privileged documents as “quality assurance and/or peer review documents in violation of California Evidence Code §§ 1151, 1157, 42 CFR § 483.75, 42 USC § 1396r.” For RFP Nos. 20 and 22, Defendant also lodges privacy objections. Defendant also produced a privilege log, attached as Exhibit G to the Verdugo Declaration.

Defendant’s opposition focuses on the relevancy objection and the assertion of privilege under the Patient Safety and Quality Improvement Act of 2005 and the Quality Assurance immunities under California Evidence Code §§ 1151, 1157. The requests seek documents that include staff observations of Plaintiff, her care, and the circumstances surrounding her stay at The Chalet, as well as investigations into her care. Such information is obviously highly relevant to Plaintiff’s claims that Defendant engaged in elder abuse in its treatment of Plaintiff. The relevancy objection is not well-taken.

The provisions set forth in 42 CFR § 483.75, 42 USC § 1396r, and Evidence Code §§ 1151, 1157 relate to investigations and meeting minutes of the “medical staff committee” dedicated to the “evaluation and improvement of the quality of care.” *Matchett v. Superior Court* (1974) 40 Cal.App.3d 623, 627. Records regarding facility quality are not shielded from discovery just because they were disclosed to a medical staff committee. *Santa Rosa Memorial Hospital v. Superior Court* (1985) 174 Cal.App.3d 711, 727. The burden is on Defendant to establish that the documents listed on the privilege log were generated solely for a medical staff committee. It is impossible to make such a determination based on Defendant’s vague descriptions in the privilege log of “incident reports.” The Court will conduct an in-camera review of the items on the privilege log to determine whether any portion of the documents are properly subject to the privilege under Section 1157. The Court will continue the hearing on the RFPs for this purpose.

As for attorney-client privilege, Defendant did not assert it as an objection to the document requests and did not make any argument in its opposition or separate statement regarding the privilege. To the extent Defendant is nevertheless withholding documents on that privilege, such a withholding is improper given Defendant's failure to properly and timely invoke the privilege. Thus, Defendant cannot withhold the documents on the log on attorney-client privilege. The Court will review the documents only for the 1157 privilege issue.

Special Interrogatories

Sp Rog No. 16 asks Defendant to "IDENTIFY PLAINTIFF'S roommate(s) during PLAINTIFFS [sic] ADMISSION.

Sp Rog No. 17 asks Defendant to "IDENTIFY the EMERGENCY CONTACT for each of PLAINTIFF's roommates at the FACILITY during the ADMISSION. (The term "EMERGENCY CONTACT" shall mean "responsible party" as that term is defined in Welfare and Institutions Code § 14110.8 and shall also include the term "patient representative" as that term is defined in both Title 22 C.C.R. § 72527 and Health and Safety Code § 123105(e).)

Defendant objected to the interrogatories on the following grounds: vague, ambiguous, burdensome, harassing, relevancy, invades third party privacy rights, seeks information protected under HIPAA because it seeks individually identifiable medical information from a healthcare provider which alone or in combination with other publicly available information reveals the individual's identity. Defendant's opposition, however, focuses only on the relevancy/HIPAA/CMIA privacy objections.

Plaintiff's claims are based, in part, on allegations that inadequate staffing at The Chalet resulted in inadequate care of Ms. Davila Pinedo. (FAC, 34, 65, 70-75.) Plaintiff also must establish by clear and convincing evidence that Defendant acted with fraud, oppression, malice, or reckless neglect. Plaintiff contends that residents such as Plaintiff's roommates, are percipient witnesses to the staffing conditions and care provided to Ms. Davila Pinedo and at The Chalet generally. Plaintiff's motion has bullet points of general information that the witnesses may have about the staffing and condition at The Chalet. As made clear by Defendant's opposition, Defendant's issue is whether the information impinges on those

residents' privacy rights and/or HIPAA/CMIA.

HIPAA/CMIA: Contact information for residents does not constitute protected "medical information" under the CMIA. See *Eisenhower Medical Center v. Superior Court* (2014) 226 Cal.App.4th 430, 435 (holding that the CMIA's definition in Civil Code Section 56.05(g) of "medical information cannot mean just any patient-related information held by a health care provider, but must be 'individually identifiable information' and also include "a patient's medical history, mental or physical condition, or treatment.""). As for HIPAA, Plaintiff correctly notes that, even if HIPAA applies to contact information, disclosure is allowed by court order under 45 CFR § 164.512(e)(1)(i). The Court therefore will not undertake the analysis of whether or not contact information is protected health information under HIPAA because it could order disclosure of the information regardless. The Court thus focuses on the constitutional privacy issue to determine whether a court order is appropriate.

Constitutional Privacy Rights: The definition of "IDENTIFY" means identifying the name, occupation, address, and telephone number. The disclosure of potential witnesses is a routine part of the discovery process. *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1250. In evaluating a privacy objection to such information, the Court must determine if the witnesses have a "legally protected privacy interest" and then if the witnesses have a reasonable expectation of privacy under the circumstances. *Id.*

Home contact information is "generally considered private." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 554. The potential witnesses here were patients at a skilled nursing facility and their caretakers. They would have a reasonable expectation that their names and contact information would remain private and not generally available to other patients at the facility. Their privacy interest is weighed against Plaintiff's interest in obtaining information regarding the staffing at The Chalet from people who were in the facility. As noted above, this information is highly relevant to Plaintiff's claims about the inadequate care that lies at the heart of the elder abuse claims. And while the witnesses do have an expectation of privacy in their contact information, that does not mean they would wish it to be withheld from a patient's successor-in-interest seeking relief for alleged legal violations at The Chalet.

The Court concludes that Plaintiff is entitled to answers to these interrogatories, and thus grants the motion to compel Defendant to provide

further responses to the interrogatories. Defendant shall provide the further supplemental response (verified) within 14 days of this order.